

		Plaintiff's counsel fails to comply, the Court will set an OSC re Sanctions. Defendant to give notice.
102	Wallace vs. Novak 26-01541076	1. Demurrer to Complaint 2. Case Management Conference Defendant Vladislav Novak ("Defendant") demurs to the Complaint of plaintiff Robert R. Wallace ("Plaintiff"). For the reasons set forth below, the Demurrer is OVERRULED. First Cause of Action for Breach of Contract Defendant argues the Complaint deliberately omits the dates on which any of the three alleged agreements were executed to obscure the fact that the claims are time-barred. Because the Complaint alleges that the contract provided for payment in approximately annual installments over ten years and Defendant made only two payments, a reasonable inference is that the contract was executed and the alleged breaches occurred more than four years before Plaintiff filed this action. Defendant further argues Plaintiff has failed to attach any of the three agreements, set out their terms verbatim, or provide sufficient detail to determine exactly what obligations were owed and when. Defendant contends the Complaint is uncertain because it references three written agreements without identifying which agreement forms the basis of the claim. As Plaintiff points out, the face of the Complaint does not clearly and affirmatively show that the breach of contract claim is time-barred. Thus, Defendant's statute of limitations argument must be rejected. (E-Fab, Inc. v. Accountants, Inc. Services (2007) 153 Cal.App.4th 1308, 1315-1316 ["In order for the bar of the statute of limitations to be raised by demurrer, the defect must clearly and affirmatively appear on the face of the

complaint; it is not enough that the complaint shows merely that the action may be barred.’ ”].)

The Complaint defines the “Contract” as the Promissory Note entered by Plaintiff and Defendant, which superseded the Original Note and Loan Modification Agreement. Thus, Defendant’s argument that the Complaint is uncertain because it is unclear which agreement forms the basis of this claim lacks merit. Further, the Complaint alleges that, under the Contract, Defendant was to pay Plaintiff the principal sum of \$95,000 in installments over a ten-year period with a zero percent interest rate, except that a six percent interest rate would accrue in the event of a default that went uncorrected for ten days. These allegations sufficiently plead the legal effect of the underlying contract, and any failure to set out the terms verbatim or attach to the contract is not fatal. (*Miles v. Deutsche Bank Nat’l Trust Co.* (2015) 236 Cal.App.4th 394, 402.)

Second Cause of Action for Financial Elder Abuse

Defendant argues the allegations describe a breach of contract and Plaintiff is improperly attempting to transform a simple breach of contract into one for financial elder abuse. Defendant contends the funds at issue were voluntarily transferred by Plaintiff to Defendant under the terms of a commercial loan and were not taken or appropriated by Defendant. Thus, the transactions fall squarely within the statutory exception set forth in Welfare and Institutions Code section 15610.30. Defendant further contends there are no factual allegations showing that Defendant intended to defraud Plaintiff when the loan agreements were executed, and the conclusory allegations that Defendant concocted a scheme to defraud Plaintiff do not satisfy the heightened pleading standard for fraud.

Plaintiff contends that Defendant misquotes section 15610.30 and subdivision (c), which provides that a taking of an elder’s property includes instances where the taking occurred by means of an agreement, and that this defeats Defendant’s argument. Plaintiff contends that the

		Complaint adequately alleges facts showing that Defendant targeted Plaintiff's advanced age and knew his conduct would deprive and harm an elder. "Financial abuse" of an elder is the taking, obtaining, or retention of property of an elder for a wrongful use or with intent to defraud. (Welf. & Inst. Code, § 15610.30(a)(1).) "A person or entity shall be deemed to have taken, secreted, appropriated, obtained, or retained property for a wrongful use if, among other things, the person or entity takes, secretes, appropriates, obtains, or retains the property and the person or entity knew or should have known that this conduct is likely to be harmful to the elder or dependent adult." (Id., § 15610.30(b).) "For purposes of this section, a person or entity takes, secretes, appropriates, obtains, or retains real or personal property when an elder or dependent adult is deprived of any property right, including by means of an agreement, donative transfer, or testamentary bequest, regardless of whether the property is held directly or by a representative of an elder or dependent adult." (Id., § 15610.30(c).) Defendant contends that subdivision (b) provides that a person shall not be deemed to have committed financial abuse if the person "takes, secretes, appropriates, obtains, or retains . . . real or personal property of an elder . . . for a lawful purpose or as part of a good faith business transaction." This quote appears nowhere in section 15610.30. The Complaint alleges that Defendant concocted a scheme to defraud Plaintiff and preyed upon Plaintiff's advanced age with knowledge that his acts were improper and unlawful. These allegations must be accepted at true for the purposes of Defendant's Demurrer. Despite Defendant's contentions, the Complaint does not merely allege a simple breach of contract claim but also alleges that Defendant purposefully took advantage of Plaintiff's age in convincing Plaintiff to enter into the contract and agree to terms that were more favorable to Defendant.
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104	Mejia Villa vs. Castaneda 23-01314626	Motion to Appoint Receiver and Motion for Preliminary Injunction Plaintiff SARAI MEJIA VILLA (“Plaintiff”) will, and hereby does, move the Court for an order: · Appointing PRABHJIT SINGH MARWAH, Financial Advisor, of RYSE FINANCIAL, San Dimas, CA (or such other neutral person as the Court may select) as receiver over the real properties identified in the concurrently filed declarations (collectively, the “Properties”) and over all rents, issues, profits, and income (the “Disputed Funds”), security deposits, books, and records relating to the Properties, with the powers set forth in the [Proposed] Order; · Issuing a preliminary injunction enjoining Defendant ESTHER CASTAÑEDA, in her representative and individual capacities, and her agents, employees, and all persons acting in concert with her, from collecting, receiving, disbursing, transferring, encumbering, or dissipating any Disputed Funds derived from the Properties; from entering into, modifying, or renewing any lease or rental arrangement for any portion of the Properties; from removing, concealing, altering, or destroying any books or records relating to the Properties; and from interfering with the receiver in the discharge of the receiver’s duties; · Directing Defendant and all persons in possession or control to turn over to the receiver possession of the Properties, together with all Disputed Funds, security